

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #07	CCRB Case #: 201500957	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 02/04/2015 4:50 PM	Location of Incident: 21st Street and 38th Avenue	18 Mo. SOL 8/4/2016	Precinct: 114
Date/Time CV Reported Mon, 02/09/2015 6:15 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/09/2015 6:15 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nolan Lauterborn	29891	954050	PSA 9

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Kevin Reed	05209	954267	PSA 9
2. POM Stephen Glenz	24338	953912	PSA 9

Officer(s)	Allegation	Investigator Recommendation
A . POM Nolan Lauterborn	Force: PO Nolan Lauterborn used physical force against § 87(2)(b)	A . Unsubstantiated
B . POM Nolan Lauterborn	Abuse: PO Nolan Lauterborn stopped § 87(2)(b)	B . Substantiated
C . POM Nolan Lauterborn	Discourtesy: PO Nolan Lauterborn spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . POM Nolan Lauterborn	Abuse: PO Nolan Lauterborn frisked § 87(2)(b)	D . Substantiated

Case Summary

On February 9, 2015, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System (CPS) on behalf of her § 87(2)(b)-old son, § 87(2)(b). § 87(2)(b) did not personally witness the incident.

On February 4, 2015, at approximately 4:50 p.m., § 87(2)(b) and approximately 15 students were observing an altercation involving a knife between two girls near the Queens Public Library located at 21st Street and 38th Avenue in Queens. When one of the girls pulled out a knife, the crowd, along with § 87(2)(b) began dispersing. Immediately after, approximately eight police officers in an unmarked red van and a marked police van arrived at the scene, which prompted § 87(2)(b) and the students to run away. In the course of running, PO Nolan Lauterborn stopped § 87(2)(b) by grabbing onto the hood of his sweatshirt (**Allegation A and B**). PO Lauterborn then asked § 87(2)(b) “Why the fuck are you running?” (**Allegation C**). Immediately thereafter, he frisked § 87(2)(b) s pants pockets (**Allegation D**). § 87(2)(b) was stopped along with three additional people. No weapons were found on any of the individuals and no arrests or summonses resulted.

This case was originally assigned to Investigator Krista Kano. Following Inv. Kano’s departure from the agency, this case was reassigned to the undersigned on March 2, 2015.

Mediation, Civil, and Criminal Histories

This case was mediation eligible, but § 87(2)(b) declined to participate. As § 87(2)(b) is a minor, mediation was not offered to him. A notice of claim inquiry was submitted on April 13, 2015, and will be added to the case file upon its receipt. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b) s fifth CCRB complaint and § 87(2)(b) s second CCRB complaint. § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
- PO Lauterborn has been a member of the NYPD for two years. This is his first CCRB complaint (encl. A26).
- § 87(2)(g)
§ 87(2)(g)

Investigative Findings and Recommendations

Potential Issues

- In his in-person statement, § 87(2)(b) named several students that were present during the incident and may have witnessed his interaction with PO Lauterborn; however, § 87(2)(b) was unable to furnish any of the minors’ full names or contact information. § 87(2)(g)
§ 87(2)(g)

Allegations Not Pleaded

- § 87(2)(g)

Allegation A: Force – PO Nolan Lauterborn used force against § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that PO Lauterborn pulled the hood of his sweatshirt in order to forcefully stop him (encl. B6-B7).

PO Lauterborn denied that he forcefully stopped § 87(2)(b). PO Lauterborn indicated that he simply positioned himself in front of § 87(2)(b) and commanded him to stop, which prompted § 87(2)(b) to stop running (encl. C12-C13). PO Reed and PO Glenz both indicated that they did not observe the stop (encl. D10, E9).

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority – PO Nolan Lauterborn stopped § 87(2)(b)

It is undisputed that PO Lauterborn stopped § 87(2)(b).

§ 87(2)(b) acknowledged that he, along with approximately 15 other students observing the knife fight, ran away as soon as they observed the officers emerge from their vans. An officer commanded them to stop, which prompted § 87(2)(b) to stop running and begin to walk. He began running again when an officer attempted to grab him. He was able to run about a “house’s distance” before PO Lauterborn managed to forcibly stop him by grabbing the left side of his hood (encl. B6-B7).

PO Lauterborn stated that he, along with PO Kevin Reed and PO Stephen Glenz, arrived at the location in response to a call regarding an assault with a knife. PO Lauterborn stated that the information provided over the radio call described the perpetrators as a large group of students with a knife, without any descriptions in regards to race, gender, or the exact number of perpetrators. PO Lauterborn first observed § 87(2)(b) on 21st Street between 36th Avenue and 37th Avenue, and he observed him for approximately 30 seconds before deciding to stop him. PO Lauterborn made the decision to stop § 87(2)(b) because he was in the vicinity of the incident location, the officer observed him running away, and because § 87(2)(b) was part of the large group of students who reportedly possessed a knife. PO Lauterborn could not recall whether he ever received updated or more specific perpetrator descriptions. PO Lauterborn stepped out of the marked NYPD van and commanded § 87(2)(b) to stop, but § 87(2)(b) did not comply. PO Lauterborn stated that he managed to stop § 87(2)(b) by positioning himself in front of him and blocking his path, which caused § 87(2)(b) to stop running (encl. C12-C13).

PO Lauterborn indicated on his Stop, Question, and Frisk report that § 87(2)(b) was stopped because § 87(2)(b) fit the perpetrator’s description, displayed furtive movements, and displayed actions indicative of engaging in violent crimes (encl. C5).

PO Reed and PO Glenz did not witness PO Lauterborn stop § 87(2)(b) because they were engaged in conducting stops of their own respective individuals under the same circumstances and for the same reasons enumerated by PO Lauterborn (encl. D6-D10, E5-E9). PO Reed recalled that the complainant who called regarding the knife assault changed her description of the perpetrator only after the individuals had been stopped (encl. D10).

According to the SPRINT report, at 4:50 p.m., the radio run listed ten male and female perpetrators who were black and Hispanic. At 4:51 p.m., the radio run determined that the knife in question was a box-cutter. At 4:55 p.m. the radio run clarified that the perpetrator was a black female wearing a beige top and grey pants. At 4:58 p.m., the Housing Conditions unit arrived at the location. Therefore, the SPRINT report indicates that the perpetrator's description was relayed before the police officers reportedly arrived on scene (encl. F21-F22), despite the Stop, Question, and Frisk reports (encl. C5-C9, D6-D7) and officer memo books listing the time of the stop as 4:55 p.m. (encl. C3,D2, E2, E5-E6).

An officer may stop an individual when they reasonably suspect a particular person is committing, has committed or is about to commit a crime. People v. DeBour, 40 N.Y.2d 210 (1976). General descriptions of suspects are not sufficient to constitute reasonable suspicion. People v. Dawkins, 163 A.D.2d 322 (2nd Dept. 1990). Absent reasonable suspicion that the suspect committed the crime, flight alone is an insufficient basis for a stop or a limited detention. People v. Howard, 50 N.Y.2d 583 (1980) (encl. A1-A23).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **substantiated**.

Allegation C: Discourtesy – PO Nolan Lauterborn spoke discourteously to § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) alleged that after he was pushed against the fence, PO Lauterborn asked him, “Why the fuck were you running?” (encl. B7-B8).

PO Lauterborn denied using any profanities or obscenities towards § 87(2)(b) during their interaction (encl. C12-C13). PO Reed and PO Glenz also denied hearing PO Lauterborn, or any other officer, use profanity or obscenities towards § 87(2)(b) (encl. D10, E9).

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Allegation D: Abuse of Authority – PO Nolan Lauterborn frisked § 87(2)(b)

It is undisputed that PO Lauterborn frisked § 87(2)(b) § 87(2)(b) stated that PO Lauterborn frisked his pants' pockets. He indicated that his jacket pockets were not frisked (encl. B6-B7).

PO Lauterborn admitted to frisking § 87(2)(b) which he explained was an attempt to confirm that § 87(2)(b) did not have a weapon. PO Lauterborn listed § 87(2)(b)'s flight and the fact that § 87(2)(b) was a part of the group of students that reportedly had a knife as the reasons for frisking § 87(2)(b). PO Lauterborn could not recall the specific parts of § 87(2)(b)'s body that were frisked, but stated that he likely conducted a standard frisk (encl. C12-C13)..

The Stop, Question, and Frisk report listed furtive movements and suspicion of violent crime as the reasons for frisking § 87(2)(b) (encl. C5). PO Lauterborn defined § 87(2)(b)'s furtive movements as his flight, and his suspicion of violent crime as his presence in a large group. PO Lauterborn stated that he did not observe any bulges on § 87(2)(b) (encl. C12-C13). PO Reed and PO Glenz both indicated that they did not observe the frisk (encl. D10, E9).

In order to conduct a frisk, an officer must reasonably suspect that he or another are in danger of physical injury by virtue of the detainee being armed. People v. DeBour, 40 N.Y.2d 210 (1976). The reasonable suspicion justifying the frisk must be particularized. People v. Gonzalez, 295 A.D.2d 183 (1st Dept. 2002) (encl. A1-A11, A24-A25).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date